

**SUBSTITUTE FOR
HOUSE BILL NO. 4908**

A bill to amend 1980 PA 299, entitled
"Occupational code,"
by amending section 1203a (MCL 339.1203a), as amended by 2018 PA
387.

THE PEOPLE OF THE STATE OF MICHIGAN ENACT:

1 Sec. 1203a. (1) Subject to ~~subsection~~**subsections** (5) **and (7)**,
2 an individual shall not perform any form of cosmetology services,
3 with or without compensation, on any individual other than a member
4 of ~~his or her~~**the individual's** immediate family without a license
5 under this article. However, this article does not apply to an
6 individual, person, or premises that is licensed under article 11
7 while performing the services of a barber.

8 (2) An individual who is licensed as a cosmetologist under



1 this article may perform hair care services, skin care services,
 2 natural hair cultivation, and manicuring services as part of the
 3 practice of cosmetology, but shall not perform electrology unless
 4 ~~he or she~~ **the individual** is licensed as an electrologist.

5 (3) The department may license an individual to perform
 6 manicuring services, natural hair cultivation, or skin care
 7 services in accordance with ~~his or her~~ **the individual's** training.
 8 An individual who is licensed as a manicurist, natural hair
 9 culturist, or esthetician shall only perform that particular
 10 service and shall not perform any other cosmetology service unless
 11 ~~he or she~~ **the individual** is licensed for that service. An
 12 individual who is licensed as a manicurist, natural hair culturist,
 13 or esthetician shall not perform electrology unless ~~he or she~~ **the**
 14 **individual** is licensed as an electrologist.

15 (4) An individual who is licensed as an electrologist shall
 16 only perform electrology services and shall not perform any other
 17 cosmetology service unless ~~he or she~~ **the individual** is separately
 18 licensed to perform those services.

19 (5) An individual who is a cosmetology student may perform
 20 shampoo services in a cosmetology establishment on members of the
 21 public without a license under this article if all of the following
 22 are met at the time the individual performs the shampooing
 23 services:

24 (a) Except as provided in subsection (6), ~~he or she~~ **the**
 25 **individual** is enrolled in a school of cosmetology.

26 (b) ~~He or she~~ **The individual** has completed ~~at least~~ **not less**
 27 **than** the 350 hours of instruction in the school's general
 28 cosmetology curriculum that is required under section ~~1205(5)(e)~~.
 29 **1205a(1)(e)**. The instruction must include at least the minimum



1 number of practical applications established by the director by
2 rule.

3 (c) The cosmetology establishment that is employing the
4 individual to perform shampoo services has received written
5 verification from the school of cosmetology **that** the individual
6 attends, in the form of a letter on the school's letterhead, dated
7 and signed by the director or manager of that school, that states
8 all of the following:

9 (i) The individual's full name.

10 (ii) That the individual is currently enrolled in the school.

11 (iii) That the individual meets the requirements described in
12 subdivision (b).

13 (iv) ~~His or her~~ **The individual's** expected graduation date.

14 (6) An individual who is performing shampooing services under
15 subsection (5) without a license under this article may continue to
16 perform those services at the cosmetology establishment without a
17 license for ~~a period of~~ **not more than** 30 days after the date the
18 individual is scheduled to graduate from the school of cosmetology.

19 **(7) An individual who is a cosmetology apprentice may perform**
20 **shampoo services in a cosmetology establishment on members of the**
21 **public without a license under this article if both of the**
22 **following are met at the time the individual performs the**
23 **shampooing services:**

24 **(a) The individual is enrolled in an apprenticeship program**
25 **conducted by a person licensed under this article.**

26 **(b) The individual has completed not less than the 350 hours**
27 **of instruction in the general cosmetology curriculum that is**
28 **required under section 1205a(1)(e). The instruction must include at**
29 **least the minimum number of practical applications established by**

1 **the director by rule.**

2 (8) ~~(7)~~—A cosmetology establishment that employs a cosmetology
3 student **or apprentice** to perform shampoo services under subsection
4 (5) **or (7)** must do all of the following:

5 (a) Maintain records of the student's **or apprentice's**
6 employment and keep the records on file for ~~at least~~ **not less than**
7 3 years after the end of the employment relationship. The records
8 must include the verification letter described in subsection
9 (5)(c).

10 (b) Allow the department access to the records described in
11 subdivision (a).

12 (c) Ensure that the student **or apprentice** does not perform
13 cosmetology services other than shampoo services while employed by
14 the establishment.

15 (d) Ensure that a licensed cosmetologist is present in the
16 establishment when the student **or apprentice** is performing shampoo
17 services.

18 (9) ~~(8)~~—A school of cosmetology that provides a verification
19 letter described in subsection (5)(c) to a cosmetology
20 establishment must retain a copy of the letter in the student's
21 school record for ~~at least~~ **not less than** 3 years after the
22 student's expected graduation date.

23 (10) ~~(9)~~—As used in this section, "shampoo services" means
24 preparing a customer for a shampoo, or shampooing or blow-drying a
25 customer, for a licensed cosmetologist.

26 Enacting section 1. This amendatory act takes effect 90 days
27 after the date it is enacted into law.

